

Line 5

Case Name: *Santa Clara Valley Water District v. Mildred Peck, et al.*

Case No.: 25CV482807

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Santa Clara Valley Water District (“Valley Water” or “Plaintiff”) moves under Code of Civil Procedure Section 1255.410 *et seq.* for prejudgment possession of the real property, identified as Assessor’s Parcel Number (“APN”) 472-12-001, located within the City of San Jose (the “Property”), that is the subject of this eminent domain proceeding. Notice of Motion (the “Motion”) at 2:4-13 (filed: March 4, 2026).

This Motion is made on the grounds that Plaintiff, as an entity with the power of eminent domain, is authorized to take possession of real property for the purposes set forth in the Complaint in this action, namely, for the construction and operation of the Coyote Creek Flood Protection Project (the “Project”), which consists of improvements to reduce the risk of flooding along approximately nine miles of Coyote Creek, including flood walls and headwalls to redirect flood flows, berms to contain or redirect flow flows, ground-level barriers to contain floodwaters, storm drain backflow prevention devices to prevent backflows from Coyote Creek to stress during high water flows, as well as vegetation removal for accession during construction. *Id.* at 22:14-21.

The Motion came on for hearing on August 28, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

As an initial matter, Plaintiff’s accompanying Request for Judicial Notice in support of this Motion is **GRANTED** in all respects. Accordingly, under Evidence Code Sections 450, 452(d) and (h), and 453, the Court takes Judicial Notice of:

1. Plaintiff’s Complaint in Eminent Domain, filed on December 2, 2025, in the Santa Clara County Superior Court in this matter, including all exhibits thereto; and
2. Plaintiff’s Notice of Deposit of Probable Just Compensation, filed on December 26, 2025 in the Santa Clara County Superior Court in this matter, including all exhibits thereto.

Next, after reviewing all moving papers and the record, and in the broad exercise of its discretion, the Court finds that Plaintiff has satisfied all the requirements for and is entitled to prejudgment possession of the Property now. Specifically, the Court finds that:

1. Plaintiff is entitled to take the Property by eminent domain;

2. Plaintiff has made the required deposit of probable acquisition for acquisition of the Property in compliance with Code of Civil Procedure Section 1255.010;
3. There is an overriding need for Plaintiff to possess the Property before final judgment; and
4. Delaying possession by Plaintiff will create a substantial hardship for Plaintiff and the public, which would be much larger than the hardship that Defendant would face if early possession were granted now.

The Motion is well supported by the law and the facts and the evidence, including by the Declaration of Madhu Thummaluru in Support of Plaintiff's Motion for Prejudgment Possession, which the Court has reviewed in detail and finds to be reasonable in all respects.

Defendants do not argue otherwise. Indeed, Defendants have not opposed the Motion at all, which the Court views as Defendants conceding the Motion in its entirety. *D.I. Chadbourne, Inc. v. Super. Ct.* (1964) 60 Cal.2d 723, 728, fn. 4.; California Practice Guide: Civil Procedure Before Trial ¶ 9:105.10, Ch. 9 at pp. 94-95 (failure to file opposition papers to motion is treated "as an admission that the motion is meritorious") (Weil & Brown, The Rutter Group, 2025 Ed.); *see also* Rule of Court 8.54(c): "A failure to oppose a motion may be deemed a consent to the granting of the motion." CRC Rule 8.54(c).

Moreover, under Code of Civil Procedure Section 1255.410(d), because Defendants have not opposed this Motion and because the Court has now found above each of the following—(1) Plaintiff is entitled to take the Property by eminent domain and (2) Plaintiff has made the required deposit under Section 1255.010, *supra*—the Court is *required* to make this order for prejudgment possession in favor of Plaintiff now. C.C.P. § 1255.410(d).

Accordingly, the Court **GRANTS** the Motion of Plaintiff Santa Clara Valley Water District to take prejudgment possession now of the Property.

SO ORDERED.

Date: August 28, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

Line 6

Case Name: *J.C. v. Watchtower Bible and Tract Society of New York, Inc., et al.*

Case No.: 22CV407932

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant West Congregation of Jehovah’s Witnesses, San Jose, CA, Inc. (“West Congregation”) moves under Code of Civil Procedure Section 437c for summary judgment or in the alternative summary adjudication of Plaintiff J.C.’s (“Plaintiff”) Second Amended Complaint. Notice of Motion (the “Motion”) at 1:28-2:3 (filed: Jan. 26, 2026). This Motion is made on the following grounds:

1. There is no triable issue of material fact as to Plaintiff’s claims against West Congregation because West Congregation did not owe Plaintiff a duty of care and therefor West Congregation is entitled to summary judgment.
2. There is no triable issue of material fact as to Plaintiff’s third cause of action for negligent hiring, supervision, or retention and thus, West Congregation is entitled to summary adjudication as a matter of law.
3. There is no triable issue of material fact as to Plaintiff’s fourth cause of action for negligence and thus, West Congregation is entitled to summary adjudication as a matter of law.

Id. at 2:10-18.

The Motion came on for hearing on August 28, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, including all the evidence and separate statements and authorities submitted by each party, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Fact Allegations & Procedural Posture

Plaintiff, J.C.,⁵ brings this Second Amended Complaint (“SAC”) against Defendants Watchtower Bible and Tract Society of New York, Inc. (“Watchtower”), West Congregation of Jehovah’s Witnesses, San Jose, CA, Inc. (“West Congregation”), Sean A. Mackey (“Mackey”), and Does 4 through 60 (collectively, “Defendants”) for incidents of childhood sexual assault perpetrated by Mackey against Plaintiff, while Plaintiff was a

⁵ J.C. is not Plaintiff’s actual name, but a fictitious name used to protect her privacy. (See SAC, ¶ 5.)